CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
October 28, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:15 p.m. on Wednesday, October 28, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda items 15-3, 15-4, 15-5, 15-6, 15-7, 15-10 and Vice Mayor Taylor pulled agenda item 15-1, 15-8, 15-9 and deferred 15-5 from the Consent Agenda. The above listed items pulled from the Consent Agenda would be discussed separately under Action Items (Agenda Items # 11).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:
There were none.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – October 14, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of October 14, 2009.

Commissioner Tydus noted that the minutes beginning on pages 4 and 12 were transcribed in verbatim format. She asked the City Clerk why certain portions of the minutes were transcribed in verbatim.

Clerk Irby advised that several members of the Commission requested that certain portions of the minutes were transcribed in verbatim.

Commissioner Tydus asked, what commissioners requested that those portions be transcribed in verbatim?

Both Commissioner Holmes and Commissioner Johnson replied that they had requested certain portions of the minutes transcribed in verbatim.

Commissioner Tydus asked Commissioner Holmes and Commissioner Johnson their reason for requesting verbatim transcripts.

Commissioner Holmes stated that he didn't have to provide an explanation. Commissioner Johnson thanked the City Clerk for providing the verbatim transcripts which she requested for several things that had been stated which she would like to be on record.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to District 1 County Commissioner Barbara Jordan came forward to address any concerns the Commission may have had. He briefly reported on his presentation from the last commission meeting in which he spoke about the HUD homes as well as the Tot Lot. The HUD homes are being deeded over to Habitat for Humanity; however, there is legal verbiage that needs to be modified.

He continued by addressing Vice Mayor Taylor's concern relating to the Miami-Dade County / Opa-locka home beautification and rehabilitation program.

Commissioner Johnson thanked Commissioner Jordan for her dedication and support of the Head Start Program.

10. PUBLIC PRESENTATION:

1. Alvin Burke
re: Welfare of the City

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission to speak on an issue from the last commission meeting in which a commissioner was allowed to speak ill of a former employee who provided great service to this city and nothing was done to stop it by the chair. Although the former City Attorney was sick, his office was always staffed which is more than what he can say for what the city has now.

He continued by expressing his frustration with the comments made about the former City Attorney Mr. Jones and advised that he would be taking his fight to the taxpayers and putting together a recall committee.

2. Steve Barrett
re: Welfare of the City

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that being in Opa-locka since 1971, the last commission meeting was a sad day for this community because of the hurtful comments made by Commissioner Tydus about the former City Attorney Mr. Jones. Along with Mr. Burke, he too would take this fight to the community. He expressed his disagreement with using the former City Attorney to protect the current City Attorney.

10a. CITIZENS' FORUM:

1. Mertis Thrower of 1045 Sultan Avenue, Opa-locka, Florida, came forward and expressed her appreciation to the City Commission and staff for taking care of the tree problem in her area.

2. Charles S. Chestnut, III, of Gainesville, Florida appeared before the City Commission on behalf of former City Attorney Mr. A. Quinn Jones and his family. In reviewing the meeting of two weeks ago, he spoke about the statements made against Mr. Jones and his family all of which were not factual.

Because of the three minute limit under Citizens' Forum, Mayor Kelley asked for the consensus of the Commission to allow Mr. Chestnut to speak an additional 2 minutes.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to allow Charles S. Chestnut, III, an additional 2 minutes to speak under Citizens' Forum.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Mr. Chestnut continued by saying that those statements were made and yet one comes back and does a defamation to a person with what he perceives to be information that is not substantiated with any kind of proof other than accusations made in terms of the relationship. As a former politician of 23 years, he suggested that the Mayor/Commission set policy of quorum in terms of the do's and don'ts that are with respective on the part of the Commission to the citizens of this particular community. He informed Commissioner Tydus that he is personally hurt, Mr. Jones wife, daughter and sisters are also personally hurt by the statements she made.

3. Sheila Pruett of 2350 NW 135th Street, Opa-locka, Florida, appeared before the City Commission to express her concerns relating to the newly revised utility bill, her water being shut off without any notice, the increasing water bill and the poor customer service at the city's water department.

Mayor Kelley apologized for the rudeness and thanked Mrs. Pruett for her tolerance in trying to address the issue; however, apparently there is an issue with the utility statements.

Manager Finnie apologized to Mrs. Pruett and said he would work to resolve this issue; however, the water should be on.

Mrs. Pruett advised that her water is back on. She continued by commending Commissioner Johnson and Mr. Finnie for their quick actions in addressing the problem and getting the water back on.

4. Sandra Cunningham of 13815 NW 23rd Avenue, Opa-locka, Florida, came forward and expressed her frustration with the high water bills.

Commissioner Holmes advised that there's an ordinance on the agenda to address the high water bills, and if passed, there should be a decrease in the water bills.

Commissioner Johnson said that everyone is challenged by the outrageous water bills and she had asked the City Manager, when there is an extremely large increase in a person water bill from one month to the next, to cap the rate until an investigation is done. In addition to the ordinance sponsored by Commissioner Holmes, she advised of the city's Hardship Program which was increased to $200.00.

For clarification purpose, Manager Finnie spoke of the city setting up a program that when they see a water bill spike, they address the spike but continue the payment schedule that is the average of the previous three months.

Commissioner Johnson agreed and said there is something definitely wrong with the water issue.

5. Antoinette Jones-Pauline came forward and spoke on behalf of her late brother A. Quinn Jones, III. She asked that all the community needs are taken care of and allow her brother to rest in peace.

6. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that a stage was built on the side lawn of Historic City Hall in preparation for the 70's Costume Ball. He suggested that a resolution is passed so that nothing takes place on the grass in the future because the workers from the Public Works Department work very hard to maintain the area around Historic City Hall. He further voiced his concerns relating to the 70's Costume Ball.

7. Aaron Hill, resident of Opa-locka, Florida, came forward and stated that his wife had paid the water bill the previous week and his water was just shut off. His concern was the increase in his water bill from $80.00 per month to $300.00 per month. The city was supposed to be investigating the increase but nothing had changed and he is basically getting the run around.

Mayor Kelley directed the City Manager to make sure Mr. Hill's concern is addressed and to make sure everyone impacted is notified of the problem.

8. Sharisse Jones, daughter of the former City Attorney A. Quinn Jones, came forward and expressed her frustration with the statements made about her father at the last commission meeting in which he was referred to as a functioning alcoholic. She thanked Commissioner Holmes for his respect and said that the statements made by Commissioner Tydus were wrong.

9. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and apologized on behalf of the citizens of Opa-locka to the family of A. Quinn Jones, III for the statements made which is not typical of the people of Opa-locka.

11. ACTION ITEMS (items from consent agenda pull list):

15-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO AMEND THE AGREEMENT WITH THE CITY'S GOVERNMENTAL LOBBYIST, BECKER & POLIAKOFF, P.A., BY EXPANDING THE SCOPE OF SERVICES TO INCLUDE REPRESENTATION OF THE CITY BEFORE THE FEDERAL GOVERNMENT IN WASHINGTON D.C., AT AN ADDITIONAL AMOUNT NOT TO EXCEED _____. *Sponsored by J.K.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Of concern to Vice Mayor Taylor was the fact that the resolution was not signed by the City Attorney as to "approved as to form and legal sufficiency". Secondly, she was unable to find any existing contracts with Becker & Poliakoff other than the 2 resolutions dating back to 2001 and 2007. She suggested that the city follow the RFP process in selecting an experienced lobbyist in Washington.

Commissioner Johnson recalled in 2007 doing an extension for the current lobbyist and stated that Becker & Poliakoff is capable of providing lobbying services in Washington D.C.; therefore, she is in support of this resolution.

Given Becker & Poliakoff's experience with the City of Opa-locka, Mayor Kelley suggested that the City Commission allow them to expand their scopes of services to include representation in Washington, D.C. In terms of the agreement, he stated that the City Commission passed the legislation in 2007 and it is up to the City Attorney, City Manager and/or City Clerk to find the contract. He proposed an amount not to exceed $20,000.00.

Vice Mayor Taylor agreed that the city did in fact need a lobbyist in Washington; however, Becker & Poliakoff had been the city's lobbyist and she is concerned about the fact that the city is now getting into the point of having a process and she didn't see a process following Becker & Poliakoff, notwithstanding, that she could only find 2 resolutions. Secondly, Becker & Poliakoff reported that the city received absolutely no funding from Tallahassee that came to the City of Opa-locka; however, other cities received money.

She further suggested that the City Commission put out an RFP for an experienced lobbying firm in federal funding to represent the City of Opa-locka in Washington.

Mayor Kelley asked both the City Attorney and City Manager if they were able to locate or had they've seen any contracts for Becker & Poliakoff?

Attorney Weeks said she is aware of the resolution in 2007 but she doesn't think they've been operating with a contract for several years. However, she is not sure about the 2007 contract.

Manager Finnie stated that he would contact Becker & Poliakoff the following day for a signed contract because the city was unable to locate the contract.

Mayor Kelley said he would defer the resolution until the City Manager can obtain a copy of the contract or agreement. Although the city didn't get any dollars in Tallahassee, in essence, those connections and the idea that they didn't lose any money is greater.

Commissioner Johnson encouraged Mayor Kelley go forth with the resolution and not defer it because if there's not an agreement then staff needs to make sure that whatever needs to be in place is in place. She is now hearing that the city is operating without a contract and that should not be. She suggested that Mayor Kelley call for the question on the resolution and should the Commission decide to go out for an RFP then the resolution could be rescinded.

Vice Mayor Taylor agreed with Mayor Kelley's deference. She asked, how was the city paying this firm without a contract or history; now the city have an RFP process to follow. The city must have a policy and procedure for professional services.

Commissioner Holmes stated to Mayor Kelley that this item is already in the form of a resolution and it is up to him to call for the question.

Commissioner Tydus was also in favor of the deference. Although it is critical that the city has representation in Washington, the city needs to follow the policy set.

Because the language in the resolution talked about amending the agreement with Becker & Poliakoff, Mayor Kelley stated that if there wasn't an agreement or the city could not find an agreement then why wasn't that information stated to him before now.

Attorney Weeks explained that she was asked to prepare the resolution and her office did the best they could to prepare it with the information they had and believing there was a contract. The City Attorney's Office was told that there was a resolution in 2007 approving and they assumed the resolution went with the contract but the contract never did come up. In all likelihood she believed that the former City Attorney did prepare a contract. Although she didn't have the benefit of talking to Mayor Kelley, the resolution in 2007 did call for a 2 year period and that was incorporated as a part of the resolution for an extension.

Mayor Kelley expressed his discontentment with asking for something and getting to this point to have this kind of challenge. The city should first of all be proactive and not reactive. He said he would move forth with the resolution and directed the City Attorney to advise him if there is no contract so that he can come back and rescind this resolution.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	No
Mayor Kelley	Yes

15-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO WORK IN CONJUNCTION WITH CSX CORPORATION ("CSX") TO IDENTIFY AND CLEAR DEBRIS ON AND AROUND RAILROAD TRACKS AND TO ENCOURAGE THE REPAIR OF ARMS, RAILINGS AND OTHER TRAIN RELATED STRUCTURES AND MECHANISMS WITHIN THE CITY OF OPA-LOCKA. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Not knowing whether the City Manager had reviewed the Action Item Lists, Commissioner Johnson stated that for at least 6 of the 8 years she had been in office, CSX was a concern of hers even in working with Commissioner Jordan's office for a buffer along State Road 9. She asked that Mark Brown, Assistant to Commissioner Barbara Jordan, District 1, come forward.

She recalled mentioning the cracking of the homes and working on a buffer and to have CSX work with the City Manager's Office to almost do the exact same thing this resolution is calling for. She asked Mr. Brown if he recalled those discussions?

Mr. Brown replied, yes.

Commissioner Johnson proceeded to asked Manager Finnie whether he could recall since his tenure as Interim City Manager of her having conversations reference CSX as reflected in this resolution.

Manager Finnie replied, yes.

Commissioner Johnson expressed her frustration with many of the items she had asked for throughout the years that are now coming up all of a sudden in resolutions. She asked, why wasn't this done before and how will the city get it done?

Manager Finnie stated that there is a communications issue and the primary focus on CSX was to discuss the whistle blowing.

Commissioner Johnson advised that the train whistle blowing was Alvin Burke, Commissioner Holmes and Mayor Kelley's issue and her issue had always been the appearance along the railroad on State Road 9.

Manager Finnie stated that the responsibility of cleaning around the railroad is FDOT and not CSX of which he wasn't aware of, but when he figured out what that responsibility was, he headed in the right direction, and by that time this resolution had surfaced.

Commissioner Johnson stated that she would not be supporting this resolution. She asked, why wasn't she contacted when the City Manager found out that the responsibility of cleaning around the railroad was FDOT and not CSX?

Vice Mayor Taylor stated that this resolution would authorize the City Manager to work with CSX to clear the debris around the railroad tracks as well as do repairs.

Commissioner Holmes expressed his concern relating to having to pass additional legislation to get certain things done.

Mayor Kelley directed the City Manager that when resolutions come up dealing with items the City Manager is already working on, the City Manager should inform the sponsor of the resolution and provide the documentation, and it would then be up to the sponsor to go forth with the legislation.

Manager Finnie stated that from this point going forward he would get more involved in reviewing ordinances from the Commission to see if there's an overlap and how that affects some of the consent items placed on the agenda.

Mayor Kelley said he didn't see the need for this resolution if the communication had occurred to say "we're working on it'. The City Manager is saying FDOT and Vice Mayor Taylor is saying CSX so he is really not sure what entity this would fall under.

Commissioner Johnson asked, is there money involved with this resolution?

Vice Mayor Taylor said she doesn't know yet that's why the resolution reflects that the City Manager would work in conjunction with CSX. All she wants the resolution to do is get the city in communication with CSX and although she is aware some of it is FDOT, the resolution reads "railroad related".

She continued by saying that currently there isn't any legislation, but a directive on the Action List and that is why she is sponsoring this resolution so that the City Manager can work with CSX to get this done.

There being no further discussion, the motion failed by a 3-2 vote.

Commissioner Johnson	No
Commissioner Tydus	Yes

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Mayor Kelley	No

In moving forward, Commissioner Johnson said she didn't want the City Manager to have her bring forth a resolution for everything because if that's the case, she has some items that have never come before the City Commission as a resolution that he is already working on.

15-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CONVERSION OF THE GOLF COURSE SITE, LOCATED SOUTH OF GOLF COURSE DRIVE BETWEEN JANN AVENUE AND NW 37TH AVENUE / DOUGLAS ROAD, TO A PASSIVE PARK FOR RESIDENTS OF THE CITY OF OPA-LOCKA. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

At the beginning of the year, Commissioner Johnson stated that the City Manager pulled the resolution which the City Commission had a vision for this particular property to bring additional tax money into this city. She assumed that the vision of the previous Commission was not shared with the sponsor and that should have taken place. Although she believed that additional green space is needed for citizens, previously Vice Mayor Taylor's champion was for a park in the Nile Gardens area and there's no green space over there. She said this is so close to what the city is currently doing now in terms of the community garden and Sherbondy Park.

Manager Finnie advised that the vision of the Commission to create tax dollars at this site for the City of Opa-locka has not been abandoned. In fact, the golf course site in the NSP application is a priority project. He said he understood this legislation to be a temporary clean up of the park which may entail cleaning up and making it look like a passive park.

In the correspondence provided to the Commission, Commissioner Johnson said she didn't see anything that read "temporary". Additionally, she wouldn't want the city to spend any money on anything that's not going to be long lasting. She said the city would be back in an emergency situation unless they watch the spending and the city should analyze the cost with all legislation that is cost related.

She continued by saying that the city is at a position to spend money on a passive park when the concentration should be on the Nile Gardens area where there is no park.

Commissioner Tydus stated that one of her concerns was the definition of a passive park but now she is clear on that. She had always felt that this property although it's strange in configuration should be a source of revenue for the city. Regardless what the city does, it

will require maintenance and that property has been an eyesore for a long time because of the city's lack of maintaining it. Whether it is a passive park or full size park, it will require maintenance, therefore, the city must concentrate on maintenance.

Vice Mayor Taylor stated that this was one of her action items from a month ago and the idea of having a passive park was to give beauty to those citizens on the edge of town. This property is overgrown and a passive park doesn't negate the fact that it can be economically developed; a passive park means that the grounds are clear, have a few chairs for people to sit and have a nice place, but when it is ready for development then the passive park becomes income generating.

She continued by saying that her next resolution would be for putting a park in the Nile Gardens area. In 2000, it was reported that 3500 children in the Nile Gardens are and they have no park but that's a whole other issue. She said she would use faith based organizations and volunteers to help come clean it up, keep it clean and put down the benches.

Commissioner Johnson expressed the importance of having the cost, line item and volunteers as a part of the resolution and make sure the city's insurance covers the volunteers.

Commissioner Tydus stated that the residents in that particular area are already using that property as a passive park sharing it with the debris and the trash. This is a beautiful property as it is if it were cleaned up and maintained which the city has not done on a consistent basis. The way the resolution is written up is more permanent than temporary.

Vice Mayor Taylor stated that a passive park is not something that is permanent and that's why it is passive; it doesn't have a lot of stuff on it. It is just a clean area where people can sit and beautify that portion of the town. She said she had already talked to the City Manager about the volunteers and faith based organizations and that cost would be little to none. If there is a cost then she will bring it back.

Mayor Kelley stated that the City Manager in seeing this resolution went to the sponsor for discussion but he didn't go to the sponsor the same way on the previous resolution and he would talk to the City Manager about this.

He continued by saying that when the City Manager pulled the resolution for this property in January 2009, one of things the City Commission indicated at that time was to make sure the property is maintained. This issue also came up during the vision setting as a task that the Urban Rangers would do until a later time. He asked, why wasn't this property maintained?

Manager Finnie said that there were other priorities in terms of how the Urban Rangers were used; however, the property was cut this summer and the city did its best to maintain it.

With this resolution, Mayor Kelley said that the sponsor indicated that volunteers and faith based organizations would be used.

Vice Mayor Taylor stated that if there is a cost then she would bring it back to the Commission.

Mayor Kelley suggested that the sponsor defer this resolution because should the City Commission pass this resolution then the sponsor doesn't have to come back because Section 3 of this resolution reads "the City Manager will take any and all necessary action to effectuate the intent of the resolution" which is to create the passive park for the residents. Although the City Commission can agree on the green space, this property should have already been cleaned up and maintained. If the sponsor wants to put benches, that's fine, but she should have asked the police in engaging in that discussion because it will possibly attract other folks as well. Passing this resolution as it is gives the green light to do what needs to be done to make this a passive park whether there's cost included or not. He cannot support this resolution based on Section 3 of the resolution.

He continued by saying that he would support it if the sponsor goes back and includes all those items mentioned, but in the meantime this property still needs to be cut and cleaned. He asked, if this property back on the Urban Rangers schedule?

Manager Finnie replied, not yet.

Mayor Kelley asked, passing this resolution would get the maintenance of the property back on their schedule?

Manager Finnie explained that there was a recent conversation regarding this property and he along with staff conducted a site visit to get caught up on what is being discussed; therefore, he is not at that point as of yet.

Commissioner Holmes asked, what happened to the future development of that property?

Mayor Kelley stated that the development of this property was submitted as a part of the city's NSP application.

Commissioner Johnson expressed her concerns relating to the volunteers and insurance coverage in the event of an accident because of the liability on the city.

Attorney Weeks stated that Commissioner Johnson's point is valid and that would have to be addressed with the carrier if volunteers are going to be used.

There being no further discussion, the motion failed by a 3-2 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	No

Commissioner Johnson	No
Mayor Kelley	No

15-6: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO REBATE ONE HUNDRED DOLLARS ($100.00) TO ALL RESIDENTIAL UTILITY CUSTOMERS WITHIN THE BOUNDARIES OF THE CITY OF OPA-LOCKA, PAYABLE FROM THE WATER & SEWER ACCOUNT. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

According to the supporting documentation for this resolution, Commissioner Johnson said that she didn't want to put the city in a financial situation. She said the request was done by the City Manager to Harvey, Covington & Thomas LLC to look at the impact should this resolution pass. She requested that Mr. Harvey come forward.

Roderick Harvey of Harvey, Covington & Thomas, LLC, came forward and provided a substitute to page 2 of the supporting documentation. He went over the two scenarios as reflected in the documentation.

Commissioner Johnson read a portion of page 3 of the supported documentation as follows: "the State Revolving Loan Agreement includes language that prohibits the city from providing free services. It is important to note if a monetary rebate will be given to residents with delinquent accounts". She further referred to the booklet provided to the Commission by the City Manager in terms of the list of accounts receivable of others which states: "utility bill accounts – we have now past due $644,520.00 past due in utilities".

She continued by asking what position would this resolution put the city in if all this money is owed on delinquent accounts. She said she believed in giving the residents a rebate but she must first look at the cost analysis, what is coming in and how this will impact the city overall. She was of the opinion after reviewing the supporting documentation that this resolution would put the city in a financial situation eventually forcing the City Commission to go back and raise the water bills. She said she would like to know how the city was going to do this from a financial perspective.

Mr. Harvey indicated that he didn't have the cash balances for what is actually in cash as to when the city would provide the rebate; however, the cash balances he has are as of today. He provided core information and anything he thought should be considered but he did not know until yesterday about the other resolution and this is something that management and the City Commission should decide. He also provided the income on accrual basis for the Water & Sewer Fund for three years to show what the income had been.

Based on the information provided, Commissioner Johnson said the city is losing money.

Manager Finnie said he is not involved in the discussion as to whether the city does a credit, rebate or hardship because that's a decision made by the policy makers but he does have a fiduciary responsibility to talk about the water utility fund which is viable and he doesn't want anyone to misinterpret because you can't compare accruals to a cash basis. He said he didn't want to leave the impression that the city's water utility fund is not a viable water utility fund.

Commissioner Johnson said the information was provided to the Commission to analyze and although she totally supports relief to the citizens; however, she supports it in a fashion of making sure at the end of the day, year or future the city will not be back in a financial situation. She said she was not saying that the water & sewer account was not viable because she seen there is 1.5 million dollars in water & sewer reserve which could only be used for specific purposes.

She continued by saying that the city just passed a resolution for the Hardship Assistance Program and now they are at second reading of the water & sewer ordinance and all these items involve money, and she just wants to know how the city is going to do it. She was of the opinion that the City Manager had a process to make this happen because if that's the case then the City Manager should forgive all the high water bills just like they did last year when they forgave 3.7 million dollars.

Manager Finnie stated that his concern is not so much the legislation being discussed but he is faced with the situation where if someone makes a misread of where the city is financially, it would deter the discussion of the second reading for his attempt to reduce the water bills. He questioned as to how he could responsibly recommend reducing the water bills and then has someone say that his financial position doesn't have the where with alls, he has to defend that front; the city has a viable liquidity account and financial position in the water & utility fund. In talking about lowering the water bills, the city's fund is strong enough to sustain the ups and down side of such an endeavor.

Vice Mayor Taylor stated Mr. Harvey's initial entity on this issue was to see if this resolution would put a hardship on the budget. She asked Mr. Harvey if that was correct?

Mr. Harvey replied, in terms of the cash balance; that is correct.

Vice Mayor Taylor said she was unaware of the additional information in the document but the first issue was the State Revolving Loan which prohibits city from giving free service; however, a delinquent account does not mean that it is not paid at all but that it has not come up to a zero balance. The other issue with the resolution which she thought the Commission would jump on is that the stimulus money is not getting down to the common man. This would give the citizens a rebate of accumulative earnings that the city has earned of $100.00 to 2,438 utility customers in the city. She said she wanted to get it straight where Mr. Harvey stood in this whole operation and that was from a standpoint

of saying that this would not have a negative effect on the budget. The City Commission has the opportunity here in the City of Opa-locka to create it own stimulus packet to the citizens. This has nothing to do with the Hardship Assistance Program because that is all year long and this rebate is one-time.

She spoke about the total amount for the rebate to include mail out which would come to a total of $244,872.72 for the 2,438 utility customers in Opa-locka.

Vice Mayor Taylor suggested that the City Commission turn to tab 4 in the booklet provided by the City Manager. She directed their attention to the Water & Sewer line item to see if they can take the money out of that fund.

She asked Dr. Orji if the city had the money in the Water & Sewer account to give the citizens $244,000.00.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that as of September 30, 2009 there is 5.8 Million Dollars in the Water & Sewer pool cash and there's 1.5 Million Dollars in the reserve fund.

Vice Mayor Taylor continued to asked, does the city have enough to give the utility customers in Opa-locka $100.00?

Dr. Orji replied, based on our report, yes.

Commissioner Holmes asked, how much money has the city received in Stimulus money this year?

In terms of grants, Manager Finnie said approximately 1.7 Million Dollars.

Commissioner Holmes stated that if he would support this resolution, he would include those customers on the outside of Opa-locka as well. The City Commission already increased the Hardship Assistance Program and going through second reading of the Water & Sewer Ordinance which addresses the consumption for a decrease in the water bills. He said he would not support this resolution.

Vice Mayor Taylor stated that she could only do one thing at a time and at a later date she will work with those residents that live outside of the City of Opa-locka. At this time, her concern is for those residents that receive water & sewer and live in the City of Opa-locka.

As much as the citizens really deserve relief, Commissioner Tydus stated that the City Commission needs to be financially prudent. They have done the best they could with what they have to work with by not increasing the water rates. She was of the opinion that the city should aggressively collect the delinquent accounts of people who have not paid and owe the city money and then they can reward the people accordingly.

Commissioner Johnson expressed her concerns with all Opa-locka utility customers whether inside or outside the city limits and her previous discussion with the Finance Director relating to the city's bank accounts and interest rates on CD's.

Dr. Orji explained that the interest rates on CD's is from the yearly reserve allocation passed through the budget process that the Water & Sewer should have at the minimum $750,000.00 as a reserve account. He stated that two years ago the management team went to the City Commission and indicated that instead of having the reserves on paper which they never had in the bank that it would be a prudent financial planning to create a CD program restricting this money so no one has access to this money without commission approval.

Vice Mayor Taylor stated that the discussion on money and finance is clouding the issue of this resolution because all she wants to do is give $100.00 to 2,438 utility customers at this time and consider the other at a later time. The City Commission has heard from the auditor that it doesn't have a negative affect on the budget and heard from the Finance Department that the city has the money. If $244,000.00 would put the city in the red then they're in the red already.

Mayor Kelley stated that he is in favor of helping the citizens but what he hadn't heard in this discussion was that fact that there was a day when the city didn't have 5 Million Dollars, nor $750,000.00 nor 1.5 Million Dollars in reserve and there was a day when they didn't have any money to talk about in the first place. One of the things in being prudent is that the money needs to go into infrastructure to fix what's wrong so the water bills will come down automatically and that's what really should occur. The city hasn't fast tracked that enough because the city should be at a point where all they have is the reserve and then they won't have leaking pipes, won't have these challenges and will really help the citizens in the long run. Although the City Commission is concerned about the citizens; he is also concerned because the city is still in need of additional dollars to fix the infrastructure and it's very hard to ask for more money when money is being given away.

He continued by saying that he didn't agree with giving the $100.00 rebate and it is not the answer to the real solution because he wants to be able to give the citizens relief and the infrastructure fixed over the long haul. In his opinion, that $5,000,000.00 should be fast tracked to provide permanent help to the citizens. One of the things the city has had is short sidedness in that they think about today but they need to look past today, even though today has its challenges and do everything they can to assist. The infrastructure as it is now with the dollars accumulated through the rates to fix the real issue and giving $100.00 is not the real answer. The citizens will see relief on their utility bills with the legislation passed. Additionally, the City Commission must be mindful that although the city is freezing the rates and doing other things, the cost of running the system is still ongoing and they don't know what costs Miami-Dade County is going to pass on. He is hoping in the future when the city demolishes the Water Plant, the city may be able to use that and reclaim some dollars but until that occurs, he has to deal with what's here now. He said he would rather be prudent at this moment giving relief to the residents through

the hardship and believing that the tier system recommended is going to help the majority of citizens. He does not believe the $100.00 is the solution. The citizens wants to see the City Commission set policy, not only impacts for today, but that has a future for tomorrow.

There being no further discussion, the motion failed by a 4-1 vote.

Commissioner Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	No
Mayor Kelley	No

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED FIVE THOUSAND DOLLARS ($5,000.00) FOR CITY CLERK PROMOTIONAL ACTIVITIES CONNECTED WITH THE 2010 CENSUS, PAYABLE FROM ACCOUNT NO. 19-519480. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THAT ALL CONTRACTS FOR THE CITY ACCOMPANY RESOLUTIONS AND ORDINANCES AND THAT ALL RESOLUTIONS AND ORDINANCES SHALL CONTAIN LANGUAGE THAT STATES "IN A FORM ACCEPTABLE TO THE CITY COMMISSION". *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor asked for further clarification on the above resolution.

Commissioner Johnson expressed the importance of having all supported documentation as a part of legislation including contracts and that the language on the resolution read "in a form acceptable to the City Commission" as oppose to "in a form acceptable to the City Attorney". She made mention of the firm hired for the Planning Council and when the contract was drafted it gave the authority for this firm to work on others projects but the City Commission wasn't aware because the contract was not a part of the legislation and it did not come back to them for approval.

Vice Mayor Taylor attempted to get a better understanding of the process as it stands now and what the purpose of this resolution would be. She referred to the RFP process and stated that the contract would not be attached to the resolution until it is negotiated with the parties. After the contract is negotiated then it is brought before the Commission, but if there's a time restraint, they have given the City Manager permission with legal to sign the contract.

In most cases, Attorney Weeks explained that there's a template she uses for the majority of contracts with vendors and that's what they've been doing. When possible, she would bring the contract with the resolution for approval on both. However, in some cases it is difficult to do when the city goes out for RFP and the city doesn't have the change to negotiate the issue.

Vice Mayor Taylor asked, if the resolutions state "in a form acceptable to the City Commission", who is liable for that contract?

Attorney Weeks advised that the City Commission would be liable.

Vice Mayor Taylor asked, prior to that, who would be liable?

Attorney Weeks replied, my office would be liable.

Vice Mayor Taylor asked, does the City Attorney's Office have liability insurance?

Attorney Weeks replied, yes.

Vice Mayor Taylor asked, does the City Commission have insurance for liability?

Attorney Weeks stated that the City Commission probably won't have insurance for liability for an issue like that.

Vice Mayor Taylor stated that she didn't want to be liable for anything because she doesn't have insurance to cover.

Mayor Kelley asked, when negotiating a contract that wasn't included with the legislation, does it always come back to the Commission?

Manager Finnie replied, no.

Mayor Kelley asked, would this legislation do that?

Manager Finnie stated that this discussion now is not a contract discussion because he has agreed to bring all contracts to the Commission; but this discussion is about the language on the contract.

Attorney Weeks explained that generally all municipalities have resolutions that read "in a form acceptable to the City Attorney" because it is standard language; but if the City Commission wants to change that then perhaps there would be some exposure to the city if it's "in a form acceptable to the City Commission" because they are not in the business of reviewing the day to day contracts.

According to the Charter, Commissioner Johnson stated that it is her understanding that the City Attorney works for the city and ultimately the City Commission; therefore, legal sufficiency on all documentation has to be concurred with the City Attorney.

In many cases, Attorney Weeks explained that the contract accompanies the resolutions but in some cases, the City Commission approved the resolution accepting the vendor but they haven't had the chance to negotiate, so it's impossible to bring that contract back. Realistically unless she brings it back twice, she will not be able to have it with the resolution.

Commissioner Johnson said that it was her understanding that the City Attorney reviews for legal sufficiency all items coming before the City Commission for a vote?

Attorney Weeks replied, correct.

Commissioner Johnson stated that "acceptable to the City Commission" does not exclude the City Attorney from legal sufficiency.

Attorney Weeks said that if the City Commission wants to abide by the language "in a form acceptable to the City Commission" she didn't know whether that's necessarily language they want to have. Normally all cities resolutions read "in a form acceptable to the City Attorney" and she'd never heard in any place where it would be acceptable to the City Commission.

Commissioner Johnson proposed an amendment to the resolution to read "in a form acceptable to the City Attorney with the approval of the City Commission". In the past, what she had seen is that it had not come back before the City Commission.

Commissioner Tydus was unclear as to what was trying to be accomplished. The language being proposed in the resolution puts the City Commission in legal liability and she doesn't have the legal expertise, background or education to put anything in a form that is acceptable; however, she can approve the conditions of the document based on the form that is acceptable by the City Attorney. In the case of an RFP where a resolution

comes before the City Commission by recommendation from the administration as to what vendor they should consider accepting, that particular resolution is accepting that vendor and there's nothing saying they have to approve or adopt a contract at that time. The proper thing to do, and it has been her experience with all municipalities as well as the City of Opa-locka in years to past, that contract is considered at the next regular commission meeting based on the resolution approving that particular vendor. With that being the case, the City Commission is approving the conditions of the contract that the legal department has already put into the acceptable form. The City Commission doesn't know anything about what an acceptable form is but they do approve the conditions and it is the City Attorney's responsibility to put those conditions in the proper form. This does not have to be done simultaneously with accepting the bid of the vendor; therefore, she has not reason to support this resolution.

Commissioner Johnson responded by saying that she received contracts and agreements that had never came in front of the Commission. She continued by saying that she would like a friendly amendment to the resolution to read "in a form acceptable to the City Attorney with the approval of the City Commission". She reassured Commissioner Tydus that they were both saying the same thing but this legislation will mandate staff to bring the contract back to the Commission upon completion of the negotiations.

Vice Mayor Taylor disagreed with the resolution because she didn't want to be responsible or liable for anything. Additionally, she wasn't sure if the friendly amendment would take the weight off the Commission.

Attorney Weeks stated that she believed the amendment would take the weight off of the Commission. She clarified that if this resolution passed she is to bring a resolution approving the RFP and then it would come back again for approval once the contract is negotiated.

Commissioner Johnson directed the City Attorney to attach the contract to the resolution and if an item need negotiating and it is not included, then that should be brought back to the Commission for approval.

Vice Mayor Taylor disagreed with Commissioner Johnson because the amendment would address the title and the first whereas but not section 2 and 3.

Commissioner Johnson deferred the above resolution to make the necessary changes and bring it back at the next meeting.

The motion and seconded on the above resolution were withdrawn and the resolution was deferred.

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THAT ALL PUBLIC RECORDS REQUESTS BE HANDLED EXCLUSIVELY BY THE CITY CLERK. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor stated that she was doing research to find out from the City Clerk if there was a written policy on how to handle public records request.

Clerk Irby stated that there isn't a written policy in the city's code or charter for Public Records Request; however, the city follows the public records law provided in the Florida Statutes.

Vice Mayor Taylor referred to a section in the city's charter dealing with the City Manager and public requests.

Attorney Weeks advised that there is language in Section 159 of the Charter which deals with publicity of records and this provision of the charter was done at a time when the open records of FS 119 wasn't as specific as it is now. The intent of it is that the City Manager is to create procedures in which records are to be reviewed and citizens are to have access to records whether it's the press or citizens coming in. The Charter establishes which predates 119 and some of the other sunshine law type open government rules that it's the City Manager that would establish the regulation.

Vice Mayor Taylor stated that what the City Attorney is saying is that there is a law in the Charter which is what she read but the interpretation therefore might be old or it may infer that because at the time they would only have inspection. She believed in a process by which to handle public records request, the only thing is it has here without the interference from other departments but the public records request will require records from the other departments. She suggested that a policy is created for public records request and that it be brought back to the City Commission because the way the resolution reads is that everything is handled by the City Clerk without interference from other departments, but sometimes the request is from the other department so they have to be involved. She said she didn't see where this was complete but then the City Clerk has to deal with the City Manager because the other departments fall under the City Manager.

In reference to FS 119, Commissioner Johnson stated that the city's charter is antiquated and it does need revisions, but what it appears is happening is that there is not a process for public records request and this resolution would put the process in place. She made reference to a lawsuit filed against the custodian of records relating to a public records request which according to FS 119 the City Commission designates that.

Attorney Weeks agreed that the City Commission can designate it and in this case the part of the issue is that it is not clear who they have designated.

She continued by providing the definition of a "Custodian of Records" and stated that this resolution would provide that the designee of public records which according to the city's Charter is the custodian of records.

Clerk Irby stated that Section 159 of the city's Charter only deals with the inspection of public records. She said her issue with the public records is that she was served a lawsuit and she will not be accountable for it because she will do her part when receiving a public records request. If she doesn't have the information in her office, she sends it to whatever department that have the information and that department's responsibility is to get the information back to her within a reasonable time. There is a lot of interference when it comes to public records.

She continued by saying that she spoke to an employee to inquire about the public records and that individual said they were told not to give the information to her. She said she would not be held accountable for these public records and if any department wants to violate Section 119 of the Florida Statutes then so be it, but she will not.

Commissioner Johnson agreed with the City Clerk but stated that instead of routing the public records request to the various departments, it should go to the City Manager and he should be responsible to getting it to the departments and ensuring it is completed within a timely manner.

She continued by saying she went over to the Human Resources Department and was told that the public records had to be approved by the City Attorney prior to being distributed to the requestor.

She further deferred the above resolution.

The motion and seconded were withdrawn on the above resolution.

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING THE FLORIDA LEGISLATURE TO SAVE TRI-RAIL BY ENACTING A CAR RENTAL SURCHARGE AND DIRECTING THE CITY CLERK TO TRANSMIT THIS RESOLUTION TO THE APPLICABLE GOVERNMENTAL ENTITIES SET FORTH HEREIN. *Sponsored by R.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

Commissioner Johnson asked for an explanation on the above resolution.

Commissioner Tydus explained that the city would be joining with many other municipalities in the tri-counties in saving the Tri-Rail transportation system. This

resolution is calling for a car rental surcharge to save the Tri-Rail in Miami-Dade, Broward and Palm Beach Counties.

Mayor Kelley explained that Tri-Rail is losing money and there's a move to try to save Tri-Rail and one of the suggestions has been to include a 25% surcharge on car rentals because the thought process is that visitors and tourists rent cars.

There being no further discussion, the motion passed by a 3-2 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 7 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "BUILDING, HOUSING AND STRUCTURAL REGULATIONS" BY CREATING ARTICLE I, SECTION 7-12 ENTITLED "SUITABILITY FOR HABITATION CERTIFICATE FOR SINGLE FAMILY RESIDENCES, CONDOMINIUM UNITS, TOWNHOUSES AND DUPLEXES ACQUIRED THROUGH CERTIFICATE OF TITLE, AND REQUIRING CERTIFICATION OF COMPLIANCE WITH APPLICABLE BUILDING CODES AND ZONING; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

Vice Mayor Taylor asked for additional information as it pertains to the above ordinance in terms of the suitability for habitation.

Mayor Kelley informed Vice Mayor Taylor that he would address her question during the City Manager's Report.

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH ATLAS PACKAGING, INC. AND SHIELDS LLC FOR WASTEWATER INFRASTRUCTURE IMPROVEMENT RELATED TO THE REHABILITATION OF PUMP STATION NO. 14, AT A COST NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Commissioner Johnson asked, did this go out for an RFP? If not, then why didn't it with the amount of money being involved.

Manager Finnie advised that this item had not gone out for an RFP. He said that Atlas is a company that is doing a 4.5 million dollar expansion in Opa-locka and they have asked Opa-locka to allow them to improve the lift station next to their building in order to move their project on time to get their Certificate of Occupancy. He recommended that the City Commission support that request. Atlas Packaging, Inc. will front that $200,000.00 and when it is all said and done the city will repay them over a two year period pursuant to this ordinance.

Commissioner Johnson asked that the sponsor point out in the correspondence that Atlas is going to be fronting the money. Additionally, she asked what had happened to Resolution No. 08-7251 where the City Commission approved three engineers for any work needed to be completed in the city.

Manager Finnie explained that this item should be in a contract and the contract lays out the terms and conditions of the engagement. The contracts clearly stated that this is a reimbursement.

Commissioner Johnson stated if this ordinance passes she would like to know where the money would come out of in the budget.

Manager Finnie stated that there is 4.3 Million Dollars in the budget for infrastructure. This company is helping the city because they are improving the lift station and they will build it for $200,000.00. The city will repay Atlas $100,000.00 per year over a two year period which helps the city cash flow all of the others things they have to do.

Commissioner Holmes recalled previously attending the groundbreaking for this particular company. The pump station belongs to the city and is in need of upgrading which is a benefit to the city.

Mayor Kelley stated that he too attended the groundbreaking for this particular company and this speaks to the big issue in which here we have a company that's willing to invest and make such of investment in the City of Opa-locka putting up their own resources upfront because they believe in the city.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; REPEALING AND REPLACING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" IN ITS ENTIRETY; ESTABLISHING A SCHEDULE OF WATER AND SEWER RATES FOR FISCAL YEARS 2008-2009, 2009-2010 AND 2010-2011; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing.

1. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, came forward in support of the above ordinance.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING THE LEGISLATURE OF THE STATE OF FLORIDA TO ENACT LEGISLATION PROHIBITING AN INDIVIDUAL FROM WRITING, SENDING OR RECEIVING TEXT MESSAGES WHILE OPERATING A MOTOR VEHICLE. *Sponsored by J.K. / D.J.*

11. A RESOLUTION OF THE CITY COMMISISON OF THE CITY OF OPA-LOCKA, FLORIDA, PIGGYBACKING THE CONTRACT BETWEEN THE STATE OF FLORIDA AND DELL MARKETING LP AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF FORTY NINE THOUSAND FOUR HUNDRED FIFTEEN DOLLARS AND SEVENTY FOUR CENTS ($49,415.74) FOR THE PURCHASE OF FORTY (40) DELL LAPTOPS WITH DOCKING STATIONS, SIX (6) DESKTOP COMPUTERS AND THIRTY EIGHT (38) MOBILE PRINTERS FOR THE CITY POLICE DEPARTMENT, PAYABLE FROM ACCOUNT NO. 36-521646. *Sponsored by C.M.*

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF TEN THOUSAND DOLLARS ($10,000.00) TO C3 TEKNOLOGIES, LLC FOR THE PURCHASE OF A USED ONAN 175 KW DIESEL POWER GENERATOR AND A 300 GALLON DIESEL SUBTANK AND AUTOMATIC TRANSFER SWITCH, PAYABLE FROM ACCOUNT NO. 25-525390. *Sponsored by C.M.*

13. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SELECT AVMED

AS THE CITY'S HEALTH INSURANCE CARRIER AND METLIFE AS THE CITY'S DENTAL INSURANCE CARRIER FOR THE PLAN YEAR BEGINNING NOVEMBER 1, 2009 THROUGH OCTOBER 31, 2010. *Sponsored by C.M.*

14. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO RENT OUT THE CITY COMMISSION MEETING SPACE LOCATED ON THE 2ND FLOOR OF TOWN CENTER ONE FOR MEETINGS AND SOCIAL FUNCTIONS ON A FEE PER USE BASIS. *Sponsored by C.M.*

15. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PURCHASE PARTS FROM SANDERS COMPANY, INC. FOR EMERGENCY REPAIRS TO THE CITY'S PUMP STATION NO. 5 IN THE AMOUNT OF SIX THOUSAND SIX HUNDRED AND SIXTY FIVE DOLLARS ($6,665.00), PAYABLE FROM ACCOUNT NO. 35-535202. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

With regards to the question Vice Mayor Taylor had with regards to habitation, Mayor Kelley said this is really what he would call consumer protection legislation and what it does is that many times when people move out or the property goes into foreclosure, individuals may want to purchase that property but the condition is not really habitable. This legislation creates a mortgage foreclosure registry so that it is habitable for people to live in and there's a process that it would go through. The city doesn't have this process in place but they do have the challenges of foreclosure and people leaving properties in such bad condition. Unfortunately, individuals purchase the property without knowing a lot of the challenges. This would create a process where the city would oversee the fact that the property would get inspected.

Mayor Kelley relinquished the gavel to Vice Mayor Taylor and left the meeting at 10:40 p.m.

A. CITY MANAGER'S REPORT:

Manager Finnie notified the City Commission that at the rescheduled Regular Commission Meeting on Thursday, November 12, 2009 he expects to make a recommendation on the Sherbondy Park project and on the Residential Solid Waste Collection & Disposal.

As a result of the city being awarded the Weed & Seed grant, he publicly acknowledged Gregory Harris of the Public Works Department for writing the application.

He further reported on the Crime Watch Summit on Sunday, October 25, 2009 which in his opinion in terms of information provided was outstanding. He recommended that the City Commission consider hosting this summit in the City of Opa-locka as soon as possible.

Manager Finnie announced that the Thailand Delegation would be visiting the City of Opa-locka once again and that information would be provided at a later time.

As it relates to the Strategic Plan, he said he would provide an update at the next regular commission meeting on the implementation which is the next step in the Strategic Plan.

In terms of the discussion relating to public records, he indicated that the City Manager's Office is neutral on that issue and it doesn't matter what the process is because he would support a process to be established for the processing of public records.

Commissioner Johnson stated that she was glad the City Manager attended the coalition sponsored by the City of Opa-locka and the City of Miami Gardens which is a joint venture. In attending the Black Mayor Conference in Las Vegas, most cities are collaborating their resources with grants and there may be great opportunities with the neighboring city.

She continued by saying that in the minutes of the last commission meeting the City Manager was to bring back a detailed report of contracts and agreements because at that time it was mentioned that they were not all rescinded. She requested that the City Manager follow up on her request.

She further requested an update on the employee's memorial garden that suppose to be adjacent to the pavilion near Historic City Hall.

Manager Finnie advised that he would have to get back with Commissioner Johnson on that issue.

Commissioner Johnson expressed her concern relating to the residual garbage in the drainage near Homestyle Restaurant along NW 22nd Avenue and the need for the city's street sweeper to be utilized in that area.

Manager Finnie advised that the city is in the process of ordering parts for the street sweeper.

Commissioner Johnson voiced her displeasure with the quality of OPA-TV and suggested that staff get out and interview individuals as oppose to displaying still pictures. Although she was in support of technology, she is not pleased with where the city is going. As mentioned at the last meeting, she did sign a support letter with Miami-Dade County for broadband.

With regards to the water bills, she said hopefully that issue was resolved with the legislation.

For accountability purposes in terms of the City Manager's limit to expend $3,500.00, Commissioner Johnson directed that the City Manager bring back at the commission meetings a detailed report on those expenses the City Manager has within his limit prior to the payment. The purpose of this request is because she observed payments to the same vendor for several payments of $3,500.00 each.

In addition to that, she said there was mentioned of the Holiday in the Park / Toy Drive on a date to be announced but both of these events are held as one and it would be held on December 12, 2009. She said she would bring back a resolution because the $3,500.00 put away for Opa-Steppers which she had not used, she would like to use for this event.

She made reference to all the resolutions previously adopted for the set up, technology, etc. in association with the 2nd floor at Town Center to be utilized as the Commission Chambers. She directed the City Manager to provide the timeline for the relocation of the Commission Chambers.

She further stated that the City Commission previously passed a resolution for a search for a City Manager and she promised to bring a draft (copy provided to the City Commission) to be opened on November 20, 2009. She encouraged the City Commission to review the draft and provide any changes or suggestions within a week. Since the city's website was under construction, she directed that the City Manager make sure this announcement was out and available.

Commissioner Johnson directed the City Manager to provide the City Attorney with a copy of the Employee Performance Evaluation so that it can remain in the same format and she would make sure the Commission receives a copy as well.

Manager Finnie advised that he would send a complete new package the following day and all three appointed officials would be included.

Since the city offices are now located at 780 Fisherman Street, Commissioner Holmes said it is time to put up the city, state, and U.S. flags on that building. He requested an update on the Commission inquiry about the feasibility of purchasing the Town Center Building. He agreed with Commissioner Johnson in terms of the city spending monies for the relocation of the Commission Chambers but the meetings are still being held in the Commission Chambers at Historic City Hall.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the financial reports, accounts receivable and bank accounts information is provided in the packet provided by the City Manager. Additionally, the city is paying all of its bills as they become due.

Commissioner Johnson suggested that Dr. Orji include in the account payable report in terms of the agreements coming up to $3,500.00 information on the vendor, the amount, and what account the funds are coming out of.

At the request of Commissioner Holmes, Manager Finnie provided a brief explanation on the water & sewer ordinance to the citizens of Opa-locka.

At the request of Vice Mayor Taylor, Manager Finnie gave a report on the process for the Sherbondy Park project which he is expecting to bring back a recommendation of a contractor at the November 12, 2009 commission meeting.

Vice Mayor Taylor asked for an update on the Old Water Plant.

Manager Finnie stated that he had just reviewed the schematics and the atlas for the underground piping system. The city is ready to go out and solicit for the demolition but he is being very cautious in terms of where the pipes are.

Fernand Thony, P.E. of the Opa-locka Public Works Department came forward and stated that the bids are due on November 23, 2009 and demolition should follow approximately 30 days after that.

16. OFFICIAL BOARD REPORTS:

There were none.

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson directed the City Attorney to call her the following day to discuss those items deferred in order to put a time certain and make the necessary revisions. Additionally, she directed the City Attorney to get with the City Manager for revisions of her Employee Performance Evaluation.

18. CITY CLERK'S REPORT:

With the approval of funds for the Census 2010, Commissioner Johnson asked, what is the timeline for the City Commission to expect promotional activities?

Clerk Irby said she would wait until after the holidays to commence with promoting the Census 2010 but she would do mail outs prior to that.

Commissioner Johnson suggested that the City Clerk work on getting the banners out as soon as possible.

At the last meeting, Vice Mayor Taylor stated that she directed the City Clerk to provide her with a timeline on the Census 2010 and she would like to receive that information.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes announced that the Commissioner Holmes Annual Turkey Giveaway in collaboration with the Opa-locka Police Department would take place on November 20, 2009 @ 11:00 a.m. for employees and at 1:30 p.m. to the citizens. Additional information would be provided at the next commission meeting.

He expressed his appreciation to everyone who supported him during his time of bereavement.

Commissioner Johnson reported that she attended the National Conference of Black Mayors; meet with individuals from Google on the broadband; as a part of the Super Bowl Committee she has companies looking at the Jazz Café and she is working with groups from Canada on bringing Soccer, Tennis and Golf to the city. Also, she reported being recognized along with Mayor Shirley Gibson at FIU with the Neighbors to Neighbors Leadership Award.

She stated to the City Manager her interest in starting back with her television show "Real Talk with Commissioner Johnson" to be tapped in the 2nd Floor Conference Room at Town Center.

She directed the City Clerk to contract Lawrence Wright for a presentation on concepts for the Historic City Hall as well as the Downtown are because she is ready to present some ideas.

Commissioner Tydus reported that she also attended the National Conference of Black Mayor's along with Vice Mayor Taylor and Commissioner Johnson. She said she was most encouraged by the workshop where she learned of the EPA funding available and she would provide administration with that information in hopes that the City of Opa-locka can benefit by it.

She invited everyone to attend the 70's Costume Ball on Saturday, October 31, 2009 @ 6:00 p.m.

Vice Mayor Taylor reported that she attending the National Conference of Black Mayors and she brought information back relating to new releases from Edison Electric Company on ways to lower the electric bill and Smart Growth which gives the difference of a Smart House and a Green House (the information booklets were provided to the City Manager). She spoke on information relating to Broadband and the workshop called "Let's Get

Pookie off the Couch" which is a study showing direct collation between economic downturn and gang related.

20. OFFICIAL BOARD APPOINTMENTS:
There were none.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 11:23 p.m.

MAYOR

ATTEST:

CITY CLERK